

NON-DISCLOSURE AGREEMENT

SHER-LEGAL-006-R01 · Tier 3 Confidential Materials

PARTIES TO THIS AGREEMENT

Disclosing Party ("SHER")

Safeport Security Services Limited, a company registered in Saint Lucia (Reg. No. 2016-C251), trading as SHER Sanctuary Experiences, Savannes Bay, Micoud, Saint Lucia, West Indies ("the Disclosing Party")

Receiving Party

Full legal name:

Organisation (if any):

Address:

Email address:

This Non-Disclosure Agreement ("Agreement") is entered into as of **[DATE]** between the Disclosing Party and the Receiving Party (together, "the Parties"). In consideration of the mutual obligations set out herein and for other good and valuable consideration (the receipt and sufficiency of which are acknowledged), the Parties agree as follows:

1. Definitions & Interpretation

- 1.1 **"Confidential Information"** means all information disclosed by the Disclosing Party to the Receiving Party in connection with the SHER Sanctuary Experiences development project, whether disclosed orally, in writing, in digital form, or by any other means, and whether or not marked "confidential", including but not limited to: full financial models and projections; land title and conveyancing documentation; acquisition strategy and land negotiation records; development agreements and term sheets; draft Sale and Purchase Agreements; draft investment agreements; SPV shareholders agreements; legal opinions; structural and geotechnical reports; planning and regulatory submissions; and all Tier 3 materials made available through the SHER Investor Portal.
- 1.2 **"Purpose"** means the evaluation by the Receiving Party of a potential investment in or property purchase from SHER Sanctuary Experiences.
- 1.3 References to a party include that party's directors, officers, employees, agents, and professional advisors.

2. Confidentiality Obligations

- 2.1 The Receiving Party shall: (a) keep the Confidential Information strictly confidential; (b) not disclose the Confidential Information to any third party without the prior written consent of the Disclosing Party; (c) use the Confidential Information solely for the Purpose; and (d) protect the Confidential Information with at least the same degree of care as it uses to protect its own confidential information, and in any event with no less than reasonable care.
- 2.2 The Receiving Party may disclose Confidential Information to its directors, officers, employees, and professional advisors (including legal counsel, accountants, and financial advisors) who: (a) need to know such information for the Purpose; (b) are made aware of the confidential nature of the information; and (c) are bound by obligations of confidentiality at least as stringent as those contained in this Agreement. The Receiving Party shall remain liable for any breach of this Agreement by such persons.

- 2.3 The Receiving Party shall not copy, reproduce, or reduce to writing any Confidential Information except to the extent strictly necessary for the Purpose.

3. Exclusions

The obligations in Clause 2 shall not apply to Confidential Information that the Receiving Party can demonstrate:

- 3.1 was already in the public domain at the time of disclosure, or subsequently enters the public domain other than through a breach of this Agreement by the Receiving Party;
- 3.2 was already known to the Receiving Party at the time of disclosure, free of any obligation of confidence;
- 3.3 was independently developed by the Receiving Party without use of or reference to the Confidential Information; or
- 3.4 is required to be disclosed by law, court order, or the order of any regulatory authority of competent jurisdiction — provided that, to the extent permitted by law, the Receiving Party gives the Disclosing Party prompt written notice of such requirement prior to disclosure and co-operates reasonably with the Disclosing Party in seeking a protective order or other appropriate relief.

4. Return or Destruction of Confidential Information

- 4.1 Upon written request by the Disclosing Party, or upon the Receiving Party's decision not to proceed with the Purpose, the Receiving Party shall promptly: (a) return to the Disclosing Party, or (b) permanently destroy (and certify in writing that it has done so), all Confidential Information in its possession or control, in all media and formats, including all copies and extracts.

5. Duration

- 5.1 The obligations of confidentiality under this Agreement shall survive the execution of this Agreement and continue in full force for a period of **three (3) years** from the date of execution, or until the relevant Confidential Information enters the public domain through no breach of this Agreement by the Receiving Party, whichever is earlier.

6. Remedies

- 6.1 The Receiving Party acknowledges that any breach or threatened breach of this Agreement may cause immediate and irreparable harm to the Disclosing Party for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek injunctive relief, specific performance, and any other equitable remedy in addition to any damages or other relief available at law, without the requirement to post bond or other security.
- 6.2 No failure or delay by the Disclosing Party in exercising any right under this Agreement shall operate as a waiver of that right.

7. No Licence or Obligation to Transact

- 7.1 Nothing in this Agreement grants the Receiving Party any licence, right, or interest in the Confidential Information or the intellectual property of the Disclosing Party beyond the right to use it for the Purpose. This Agreement does not obligate either party to enter into any transaction, partnership, or investment arrangement.

8. Governing Law & Jurisdiction

- 8.1 This Agreement is governed by and construed in accordance with the laws of Saint Lucia. Each party irrevocably submits to the exclusive jurisdiction of the courts of Saint Lucia for the resolution of any dispute arising from or in connection with this Agreement.
- 8.2 If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

Signed for and on behalf of

Safeport Security Services Limited

Signature

Kemble Emanuel

Name (print)

Managing Director

Title

[DATE]

Date

Signature

Full name (print)

Title / Position

Organisation (if applicable)

Date